

FILED

09 NOV 26 PM 12:20

KING COUNTY
SUPERIOR COURT CLERK
SEATTLE, WA

Superior Court of Washington
County of King

In the Custody of:

TIMOTHY E. BENNETT, II,

Child,

MELVINA ROBERSON,

Petitioner,

and

ZACKARIAH J. BENNETT and KELLY J.
BENNETT,

Respondent's.

No. 08-3-03956-4SEA

**PETITIONER'S DECLARATION IN
SUPPORT OF ADEQUATE CAUSE
AND FINAL CUSTODY DECREE**

I. Basis

I, **MELVINA ROBERSON** state under penalty of perjury under the laws of the State of Washington that the following is true:

1. I am the petitioner above named, am 49 years old and in good health. I am the paternal grandmother of Timothy E. Bennett, II who is 22 months old. I have no criminal history.
2. I have had custody of Timothy in my home in Carnation, King County, Washington since March 5, 2008.
3. Timothy's father is my son Zackariah J. Bennett. Zackariah is over the age of 18 years. He is currently in the Adams County, Colorado jail facing various charges for domestic violence, violating

*PETITIONER'S DECLARATION IN SUPPORT OF ADEQUATE
CAUSE AND FINAL CUSTODY DECREE 1 of 3*

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4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

ORIGINAL

1 restraining orders, evasion, etc. Zackariah has been in jail off and on for the last few years and currently
2 faces up to eight years in prison on the current charges.

3 4. Zackariah has not seen his son since March 2008 nor made any attempt to help with Timothy's
4 support. Starting a couple months ago Zackariah began calling his son on the telephone a couple times
5 per week.

6 5. Timothy's mother Kelly is also over the age of 18 years and has a long history of drug abuse.
7 Kelly is currently in a drug rehabilitation program in California. She has not seen her son since June 16,
8 2008 when she went back to Colorado to pursue her interest in illegal drugs. Kelly has made no attempt
9 to help financially support her son. Within the last six weeks Kelly has started calling Timothy on the
10 telephone once or twice per week.

11 6. When I first got Timothy he was 14 months old but developmentally he was only at six months.
12 Now he is 22 months old and developmentally he's at two and one-half years. Timothy is in the 75th
13 percentile for height at his age and 50th percentile for weight. I took him the doctor at 18 months for
14 check-up, shots, etc. and will take him again at 24 months. Timothy is healthy, happy and doing very
15 well.

16 7. Timothy is schedule to register for pre-school in January 2009 or as soon thereafter as space is
17 available. At present, Timothy is learning to count, can feed himself with a spoon and fork, and is
18 partially potty trained. Bedtime is 9:30 p.m. and he takes a daily nap from 2:30-3:30 p.m. I try not to
19 vary these times much so Timothy can have a consistent routine.

20 8. Timothy often plays with Faith, a neighbor girl two months older. He plays well with other
21 children and is gentle and kind to my pet dog.

22 9. Kelly's parents Jeff and Carol Lane live in Colorado and have been supportive of my having
23 Timothy. In October Jeff and Carol flew up here from Colorado and spent a couple days visiting with
24 Timothy. Timothy doesn't talk about his own parents, Zackariah and Kelly. He never asks about them
25 and seems a little uncertain about how they are when they call him on the telephone.
26

*PETITIONER'S DECLARATION IN SUPPORT OF ADEQUATE
CAUSE AND FINAL CUSTODY DECREE 2 of 3*

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1 10. Timothy was terribly neglected before coming to me as I have previously stated in my
2 Declaration Of Petitioner In Support Of Temporary Custody Of Timothy E. Bennett. He is now happy,
3 healthy, has an established routine, and is well cared for and much loved.
4

5 DATED this 18th day of November 2008.
6

7 
8 Melvina Roberson
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PETITIONER'S DECLARATION IN SUPPORT OF ADEQUATE
CAUSE AND FINAL CUSTODY DECREE 3 of 3

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**Superior Court of Washington
County of King**

In re the Custody of:

TIMOTHY E. BENNETT, II,

Child(ren),

MELVINA ROBERSON,

Petitioner(s),

and

ZACHARIAH J. BENNETT
and KELLY J. BENNETT,

Respondent(s).

No. 08-3-03956-4SEA

**Order Re Adequate Cause
(Nonparental Custody)**

☐ Denied (ORRACD)

☒ Granted (ORRACG)

Clerk's Action Required

(Proposed)

I. Basis

- 1.1** A petition requesting custody of child(ren) be granted to petitioner(s) has been presented to the court.
- 1.2** A hearing was held on December 5, 2008.

II. Findings

The Court Finds:

2.1 Jurisdiction

This court has jurisdiction over the proceeding and the parties.

2.2 Service on Nonmoving Party

The nonmoving parties were served with a copy of the Nonparental Custody Petition, Summons, Notice of Hearing for Adequate Cause, and Temporary Restraining Order, Order to Show Cause, Case Schedule, as follows:

Order Re Adequate Cause (Nonparental Custody) 1 of 3
CU2.0400

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ZACHARIAH J. BENNETT served on May 30, 2008.
KELLY J. BENNETT served on May 29, 2008.

2.3 Time Elapsed Since Service on the Nonmoving Party

More than 20 days have elapsed since the date of service on all nonmoving parties served within the state of Washington; and more than 60 days have elapsed since the date of service on all nonmoving parties served outside the state of Washington; and more than 90 days have elapsed since date of mailing to all nonmoving parties served by mail.

2.4 Adequate Cause Finding

☐ Adequate cause for hearing the petition has not been established.

☒ Adequate cause for hearing the petition has been established by court order after a hearing or by stipulation of all parties.

III. Order

It is Ordered:

☐ The petition is denied and all temporary orders are terminated.

☐ The matter is set for hearing or trial at a date or time to be established.

☐ The matter is set for hearing or trial at:

Date: _____

Time: _____ a.m. /p.m.

Place: _____

Room/Department: _____

☒ Other: An Order of Default was entered against the Respondent's on August 12, 2008. Petitioner is entitled to entry of a *Nonparental Custody Decree, Findings Of Fact and Conclusions Of Law and Final Nonparental Custody Order Of Support By Default*.

Dated: _____

Judge/Commissioner

Order Re Adequate Cause (Nonparental Custody) 2 of 3
CU2.0400

1 Presented by:

2 *O.W. Hollowell*

3 Signature of Party or Lawyer/WSBA No. *9163*

4 *O.W. Hollowell*

5 Print of Type Name

6 *Attorney for Petitioner*

7 Approved by:

8 Signature of Party or Lawyer/WSBA No.

9 Print of Type Name

10 ☐ Approved by Guardian Ad Litem:

11 Signature of Party or Lawyer/WSBA No.

12 Print of Type Name

Approved by:

Signature of Party or Lawyer/WSBA No.

Print of Type Name

Approved by:

Signature of Party or Lawyer/WSBA No.

Print of Type Name